

Kajal & Anr vs State Of Punjab And Ors on 11 May, 2018

Author: H.S.Madaan

Bench: H.S.Madaan

CRM-M-20207-2018

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IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

CRM-M-20207-2018

Date of decision:-11.5.2018

Kajal and another

...Petitioners

Versus

State of Punjab and others

...Respondents

CORAM: HON'BLE MR.JUSTICE H.S.MADAAN

Present: Petitioners in person with Ms.Gurvir Kaur Gill, Advocate.

...

H. S. Madaan, J. (Oral)

It is contended that petitioner No.1 - Kajal, aged about 20 years has got married with petitioner No.2- Arshdeep Singh, aged about 21 years, against the wishes of her family members, who are arrayed as private respondents No.4 to 8 and they have been trying to interfere in their marital life, as such to seek protection in that regard, they have approached this Court by way of filing the present petition.

As per the documents placed on record by the petitioners themselves, the date of birth of petitioner No.2 - Arshdeep Singh is 30.9.1997 and he is less than 21 years and the marriage is not as per 1 of 2 requirement of Section 5 of Hindu Marriage Act. However, nobody can be allowed to cause physical harm to the petitioners.

Therefore, this petition is disposed of with a direction to respondent No.2 - Senior Superintendent of Police, Kapurthala to ensure that no physical harm is caused to the petitioners at the hands of respondents No.4 to 8 or persons claiming under them.

However, this order shall not validate the marriage between the petitioners and shall not have any effect on any civil or criminal action to which the petitioners may be found liable, under the law.

11.5.2018

Brij

(H. S. MADAAN)

JUDGE

Whether reasoned/speaking : Yes/No

Whether reportable : Yes/No

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